

MASTER SERVICES AGREEMENT

TechCorp Solutions Inc. & Acme Enterprises Ltd.

Document Version: v4.2 | Effective Date: January 1, 2025

PARTIES TO THIS AGREEMENT

This Master Services Agreement (the "**Agreement**") is entered into as of January 1, 2025 (the "**Effective Date**") by and between:

Service Provider	Client
TechCorp Solutions Inc.	Acme Enterprises Ltd.
123 Silicon Valley Blvd San Francisco, CA 94105	456 Business Park Drive New York, NY 10001
VAT: US-TC-4829301	VAT: US-AE-7731204

SECTION 1: DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings ascribed to them below:

1.1 "Services": Means the software development, consulting, and related technology services described in each Statement of Work (SOW) executed under this Agreement.

1.2 "Deliverables": Means all work product, software, documentation, reports, and other materials created by Service Provider in connection with the Services.

1.3 "Confidential Information": Means any non-public information disclosed by either party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

1.4 "Intellectual Property": Means all patents, copyrights, trademarks, trade secrets, and other proprietary rights.

1.5 "Customer Data": Means all data, information, and materials submitted by Client or its users to the Services platform.

SECTION 2: SERVICES AND DELIVERABLES

2.1 Scope of Services

Service Provider agrees to provide the Services to Client as described in mutually executed Statements of Work. Each SOW shall specify the scope, timeline, fees, and acceptance criteria for the applicable

Services. In the event of any conflict between an SOW and this Agreement, the terms of the SOW shall govern with respect to that specific engagement.

2.2 Change Orders

Any changes to the scope of Services must be agreed upon in writing via a Change Order signed by authorized representatives of both parties. Service Provider reserves the right to adjust fees and timelines proportionally for approved scope changes.

2.3 Acceptance

Client shall have ten (10) business days following delivery of each Deliverable to notify Service Provider in writing of any material non-conformity with the applicable SOW specifications. Silence constitutes acceptance. Accepted Deliverables are non-refundable.

SECTION 3: FEES AND PAYMENT TERMS

3.1 Fees

Client agrees to pay Service Provider the fees set forth in each SOW. All fees are in US Dollars and are exclusive of applicable taxes unless stated otherwise.

3.2 Invoicing and Payment

Service Provider shall invoice Client monthly in arrears. Payment is due within **thirty (30) days** of the invoice date. Late payments shall accrue interest at 1.5% per month (or the maximum rate permitted by law, whichever is less).

3.3 Disputed Invoices

Client must notify Service Provider in writing within fifteen (15) days of receiving an invoice if Client disputes any portion thereof. Undisputed amounts remain due by the original payment deadline.

SECTION 4: INTELLECTUAL PROPERTY RIGHTS

4.1 Pre-Existing IP

Each party retains all ownership of and rights to its Pre-Existing IP. Nothing in this Agreement transfers ownership of either party's Pre-Existing IP to the other party.

4.2 Work-for-Hire Deliverables

Subject to full payment of all fees, Service Provider assigns to Client all right, title, and interest in custom Deliverables created solely for Client under a SOW that explicitly designates such Deliverables

as work-for-hire. Generic components, frameworks, and tooling used in delivery remain the property of Service Provider.

4.3 License to Client

For any Deliverable not fully assigned under Clause 4.2, Service Provider grants Client a perpetual, non-exclusive, royalty-free license to use such Deliverable for Client's internal business purposes.

SECTION 5: CONFIDENTIALITY

5.1 Obligations

Each party agrees to: (a) hold the other party's Confidential Information in strict confidence using at least the same degree of care used for its own confidential information, but no less than reasonable care; (b) not disclose such information to any third party without prior written consent; and (c) use Confidential Information only for purposes of performing its obligations under this Agreement.

5.2 Exclusions

Confidentiality obligations do not apply to information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known before disclosure; (c) is independently developed without use of Confidential Information; or (d) is required to be disclosed by law or court order, provided the receiving party gives prompt written notice.

5.3 Duration

Confidentiality obligations survive termination of this Agreement for a period of **five (5) years**.

SECTION 6: DATA PROTECTION AND PRIVACY

6.1 Data Processing

Service Provider shall process Customer Data only in accordance with Client's documented instructions and applicable data protection laws, including the General Data Protection Regulation (GDPR) where applicable. Service Provider shall implement appropriate technical and organizational measures to protect Customer Data against unauthorized access, loss, or destruction.

6.2 Data Retention

Service Provider shall retain Customer Data only for as long as necessary to provide the Services or as required by applicable law. Upon termination of this Agreement, Service Provider shall, at Client's election, return or securely destroy all Customer Data within **thirty (30) days**.

6.3 Sub-processors

Service Provider shall not engage any sub-processor to process Customer Data without Client's prior written authorization. Service Provider remains liable for the acts and omissions of its sub-processors to the same extent as its own acts and omissions.

SECTION 7: INFORMATION SECURITY

7.1 Security Standards

Service Provider shall maintain an information security program that includes: (a) encryption of Customer Data in transit using TLS 1.2 or higher; (b) encryption of Customer Data at rest using AES-256; (c) multi-factor authentication for all personnel accessing production systems; and (d) annual third-party security audits with results provided to Client upon request.

7.2 Security Audits

Client may, upon thirty (30) days' written notice, conduct or commission an independent security audit of Service Provider's systems. Such audits shall occur no more than once per calendar year and shall not unreasonably disrupt Service Provider's operations.

SECTION 8: DATA BREACH NOTIFICATION

8.1 Breach Detection

Service Provider shall maintain monitoring systems capable of detecting unauthorized access to or disclosure of Customer Data. Service Provider shall document all suspected security incidents, regardless of whether they are later confirmed as actual breaches.

8.2 Notification Obligation

Customer shall notify Vendor within seventy-two (72) hours of discovering any unauthorized access to, disclosure of, or loss of Customer Data, regardless of the magnitude or severity of such incident. The initial notification may be made verbally but must be followed by written confirmation within twenty-four (24) hours of the verbal notification.

8.3 Notification Contents

The written breach notification shall include, to the extent known at the time: (a) a description of the nature of the breach; (b) the categories and approximate number of data subjects affected; (c) the categories and approximate volume of Customer Data records affected; (d) the likely consequences of the breach; and (e) the measures taken or proposed to address the breach.

8.4 Failure to Notify

Failure to provide timely notification as required under Clause 8.2 shall constitute a material breach of this Agreement. In addition to other remedies, Client shall be entitled to liquidated damages of **USD 10,000 per day** for each day of delayed notification beyond the 72-hour window, up to a maximum of USD 300,000 per incident.

SECTION 9: TERM AND TERMINATION

9.1 Term

This Agreement commences on the Effective Date and continues for an initial term of two (2) years, unless earlier terminated. Thereafter, the Agreement automatically renews for successive one-year periods unless either party provides ninety (90) days' written notice of non-renewal.

9.2 Termination for Convenience

Either party may terminate this Agreement for convenience upon **ninety (90) days' written notice** to the other party. Client shall pay all fees for Services rendered through the effective date of termination, plus any non-cancellable third-party costs incurred by Service Provider.

9.3 Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party: (a) materially breaches any provision of this Agreement and fails to cure such breach within **thirty (30) days** of receiving written notice; (b) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy proceedings; or (c) engages in fraudulent or illegal conduct.

9.4 Effect of Termination

Upon termination: (a) all active SOWs shall terminate unless otherwise agreed in writing; (b) each party shall promptly return or destroy the other's Confidential Information; (c) Service Provider shall provide Client with an extract of Customer Data in a standard machine-readable format within fifteen (15) days; and (d) all accrued payment obligations survive termination.

SECTION 10: LIMITATION OF LIABILITY

10.1 Limitation on Damages

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION, REGARDLESS OF THE CAUSE OF ACTION OR THE THEORY OF LIABILITY.

10.2 Liability Cap

Each party's total aggregate liability under this Agreement shall not exceed the greater of: (a) the total fees paid or payable by Client in the twelve (12) months immediately preceding the claim; or (b) USD 500,000. This limitation applies regardless of the form of action.

10.3 Exceptions

The limitations in Clauses 10.1 and 10.2 shall not apply to: (a) indemnification obligations; (b) breaches of confidentiality obligations; (c) data breach notification failures; (d) willful misconduct or gross negligence; or (e) infringement of intellectual property rights.

SECTION 11: GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law provisions. The United Nations Convention on Contracts for the International Sale of Goods shall not apply.

11.2 Dispute Resolution

The parties agree to attempt to resolve any dispute through good-faith negotiation for thirty (30) days before initiating formal proceedings. If negotiation fails, disputes shall be resolved by binding arbitration administered by JAMS in San Francisco, California, under the JAMS Comprehensive Arbitration Rules. The arbitration shall be conducted in English.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

TechCorp Solutions Inc.	Acme Enterprises Ltd.
Signature: _____	Signature: _____
Name: Sarah Chen	Name: James Okafor
Title: Chief Executive Officer	Title: Chief Procurement Officer
Date: January 1, 2025	Date: January 1, 2025